

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3638

By: Lawson

AS INTRODUCED

An Act relating to food stamps; providing that Oklahoma shall participate in certain program; directing the Department of Human Services to administer the program and to submit documentation; directing the Department to coordinate with the State Department of Education; directing the Department of Human Services and the State Department of Education to share data as necessary; providing that benefits issued under program be subject to restrictions applicable to the Supplemental Nutrition Assistance Program; providing that implementation of program be subject to availability of funds; providing that continued participation in program not required if federal share of costs are reduced; directing the Department of Human Services to implement certain measures; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 241.5 of Title 56, unless there is created a duplication in numbering, reads as follows:

A. Beginning with the 2027 program year, the State of Oklahoma shall participate in the federal Summer Electronic Benefit Transfer

1 for Children ("Summer EBT") program as authorized pursuant to the
2 federal Consolidated Appropriations Act of 2023, to provide
3 supplemental nutrition assistance to eligible children during
4 periods when school is not in session.

5 B. The Oklahoma Department of Human Services shall administer
6 the Summer EBT program and shall submit all applications, plans, and
7 other documentation required by the United States Department of
8 Agriculture or any other federal agency necessary to implement and
9 administer the program in accordance with federal law.

10 C. The Department of Human Services shall coordinate with the
11 State Department of Education for the purpose of determining program
12 eligibility and facilitating efficient program administration.

13 D. The Department of Human Services and the State Department of
14 Education are authorized to share data as necessary to implement and
15 administer the Summer EBT program, subject to applicable state and
16 federal privacy and confidentiality laws.

17 E. To the maximum extent permitted by federal law, benefits
18 issued under the Summer EBT program shall be subject to the same
19 eligible food restrictions applicable to the Supplemental Nutrition
20 Assistance Program in Oklahoma. The Department of Human Services
21 shall seek any necessary federal approvals to align program
22 restrictions with state policy.

23 F. Implementation of the Summer EBT program shall be subject to
24 the availability of funds appropriated by the Legislature for the

1 purpose of administering the program. Should the federal share of
2 costs for administering the program be reduced from the level
3 approved for the 2027 program year, the State of Oklahoma shall not
4 be required to continue participation unless otherwise authorized by
5 the Legislature.

6 G. The Department of Human Services shall implement program
7 integrity measures consistent with federal requirements, including
8 eligibility verification, data matching, and the prevention,
9 detection, and recovery of improper payments.

10 SECTION 2. This act shall become effective November 1, 2026.

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